



Appeal Decision

Site visit made on 15 July 2026

by Alice James BSc MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 18th September 2026

Appeal Ref: 6006900

Land at Rogers Lane, Findon BN14 0RE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr R Gamble against the decision of South Downs National Park Authority.
 - The application Ref is SDNP/25/04240/PIP.
 - The development proposed is described as planning permission in principle (PIP) for the construction of a chalet style dwelling.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A new National Planning Policy Framework (NPPF) was issued on 17 August 2026, which replaces the previous NPPF published in December 2024, and all other iterations. I have given the main parties the opportunity to comment and taken their responses into consideration. The policies in the NPPF are material considerations which must be taken into account in decision-making from the day of its publication. Therefore, I have taken into consideration the NPPF policies in this decision.
3. The site lies within the South Downs National Park (SDNP). There are two statutory purposes to the National Park, which are to conserve and enhance the natural beauty, wildlife and cultural heritage and to promote opportunities for the public understanding and enjoyment of the special qualities of their areas. Section 245 of the Levelling-Up and Regeneration Act 2023 (S.245 duty) amends and strengthens the Section 11A (2) duty of the National Parks and Access to the Countryside Act 1949. This means that relevant authorities must proactively consider how proposed development seeks to further the specified purposes of the SDNP.
4. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second ('technical details consent') stage is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
5. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted. All other matters are considered as part of a subsequent Technical Details Consent application if

permission in principle is granted. The detailed drawings submitted with this appeal are indicative. I have determined the appeal accordingly.

Main Issues

6. The main issues are whether the location, land use and amount of proposed development would be acceptable with particular regards to:
 - the effect on the character and appearance of the appeal site and the natural beauty of the South Downs National Park; and
 - the spatial strategy and accessibility to services

Reasons

Character and Appearance

7. The appeal site is located outside of a settlement in an elevated position within the SDNP and is accessed via Rogers Lane. It is a largely undeveloped field with a small-scale outbuilding in the corner of the site. Adjacent to the outbuilding is a single neighbouring residential property which is set back from the road. The boundaries of the appeal site are lined with mature vegetation and a post and rail fence. The boundaries in this section of Rogers Lane are lower which allows public right of way users a view over to Cissbury Ring giving a feeling of an open and spacious rural character.
8. The appeal site is some distance away from Findon and does not feel visually connected. There are some discreet small pockets of development along Rogers Lane. These developments are generally spread-out solitary dwellings set back from the road or buildings of a generally horticultural or agricultural appearance. These developments are surrounded by open fields that are lined by mature vegetation which create predominantly tranquil and spacious rural character. When all is considered the appeal site has an open rural character which makes a positive contribution to the prevailing open tranquil rural character and appearance of the wider SDNP landscape.
9. The proposed development is for one dwelling with specific details to be submitted at the technical details stage. Due to the elevated position of the site, the introduction of built form at the site would not be visually contained and would likely appear prominent in the surrounding landscape. This is further compounded by the close proximity of the site to public right of ways which further increases the site's prominence in the SDNP landscape.
10. A dwelling in this location would reduce views towards Cissbury Ring which is a key feature of the SDNP and would erode the sense of openness that the public experience from the public right of way. This would negatively affect the public's understanding and enjoyment of the special qualities of the SDNP. In this context, the proposed development would erode the open and rural character and appearance of the appeal site, and this would be harmful to the wider SDNP landscape.
11. There is an outbuilding on the appeal site but it is small in scale and has the appearance of an agricultural building and therefore sits discreetly in the landscape. In contrast, an additional dwelling would further consolidate the scattered pattern of development and increase the intrusion of domesticated land.

That would further erode the open tranquil rural character and appearance of the site and would be harmful to the SDNP's landscape character.

12. The proposed site is large enough that a single dwelling could be considered a moderate amount of development on it, with ample private amenity space. Nevertheless, for the reasons stated above the proposed residential land use in this intrinsically rural and open location would be significantly harmful to the character and appearance of the appeal site and surrounding area. Consequently, the appeal site would fail to conserve or enhance the natural beauty the SDNP's landscape.
13. In conclusion, due to its location and the proposed land use, the development would have a harmful impact on the character and appearance of the appeal site and the natural beauty of the SDNP. The proposed development would fail to seek to further the purpose of conserving and enhancing the natural beauty of the protected landscape. It therefore conflicts with provision set out in policies SD1, SD4, SD6, and SD21 of the South Downs Local Plan (2019). These policies in summary seek to make sure that development will conserve and enhance the SDNP landscape character, including views of key landmarks and/or from public rights of way. It therefore follows that the proposal would fail to comply with the provisions of policies DP3 and N4 of the NPPF as it is not sensitively located to avoid harm to the statutory purposes and special qualities of the Protected Landscape, does not respond to its context and would not enhance its surroundings.

Location for housing

14. There are pockets of development close by to the proposed development site. From that perspective it could not reasonably be described as isolated. However, it undisputedly falls outside of any settlement boundary and therefore within the open countryside. There is no compelling evidence that the proposed development would meet any of the exceptions set out in policy SD25 of the South Downs Local Plan (2019).
15. The appeal site is accessed via Rogers Lane which is a narrow single lane road with a rural character. There are no footways or street lighting on Rogers Lane which is subject to the national speed limit. The nearest settlement to the appeal site is Findon which is a service village. This settlement would provide some limited services for day to day living and there is a bus service to Worthing which would have a greater range day to day services. However, accessing Findon on foot or by bike from the appeal site would involve going along an unlit, unpaved narrow lane before crossing the Findon Bypass (A24). The crossing proposed in the Neighbourhood Plan would not address the accessibility issues along Rogers Lane itself. In this context, I consider the appeal site not to be well connected to Findon, and future occupiers would have a reliance on the private car.
16. Below the appeal site is 'Your Local Garden Centre Findon Vale' which would provide some limited day to day goods. However, this would be accessed along the same unsatisfactory route along Rogers Lane meaning it is still likely that future occupiers would be reliant on private vehicles.
17. Opportunities to maximise sustainable transport solutions will vary between urban and rural areas and it is unlikely that one dwelling would severely increase vehicle movements on Rogers Lane. One dwelling might make a small contribution to the

vitality of Findon. Nevertheless, the site is not in a location that is reasonably accessible by foot, cycle or public transport to services and facilities required for day-to-day living, and future residents would likely be highly reliant on private cars for most journeys, irrespective of the precise distance. In this context the proposed development would not be physically well related to the settlement of Findon.

18. I conclude that the proposed development would be in an inappropriate location, with regard to the spatial strategy and accessibility to services, contrary to the aims of policies SD1 and SD25 of the South Downs Local Plan (2019). These policies, in summary, seek to restrict housing in the open countryside and direct housing to settlements with higher levels of services and where opportunities to use sustainable transport methods can be utilised. It therefore follows that the proposal would fail to comply with provisions and aims of policy TR3 of the NPPF because it would not support sustainable patterns of movement or enable good accessibility for different users.
19. The appellant has raised policies TR4 and TR6 of the NPPF but the provisions of these policies refers to street design, access and parking and assessing transport impacts which are matters which would be largely addressed at the technical details stage and therefore have neutral weight in this decision.

Other Matters

20. It has been indicated that the proposed development would be a self-built dwelling. I have given due regard to the duties set out in the Self-build and Custom Housebuilding Act 2015 (as amended) and policy HD4 of the Findon Neighbourhood Development Plan 2016 - 2035. I acknowledge that a planning obligation could be offered at the technical details stage to secure that. However, there is no mechanism at permission in principle stage to secure self-build housing.
21. The appellant has alluded to a lack of harm in respect of trees, listed building, conservation areas, living conditions, flood risk, highway safety, parking, biodiversity and ecology. I also acknowledge the appellants intention to create an orchard and wildlife pond with sustainable construction methods and additional planting. However, these are matters which could only be secured at the technical details stage. They fall outside the scope of this first stage of the permission in principle process and are effectively neutral in the determination of this appeal.
22. The proposed development would provide the benefit of one additional residential unit which would increase the supply of housing in the Authority. It would bring forward housing on a relatively small site and there would be some modest economic benefit, from the construction process and any ongoing support for village services.
23. I have had regard to the lack of objection from Findon Parish Council and the caselaw set out in the appellant's evidence, but neither leads me to make an alternative conclusion on the main issues.

Planning Balance and Conclusion

24. Due to its location and the proposed land use, the development would have a harmful impact on the character and appearance of the appeal site and the natural beauty of the SDNP. It would also be in an inappropriate location, with regard to

the spatial strategy and accessibility to services. The proposal therefore conflicts with the development plan, taken as a whole.

25. Policy S3 of the NPPF applies a presumption in favour of sustainable development to development outside settlements which complies with policy S5 of the NPPF.
26. Policy S5 of the NPPF finds that only certain forms of development should be approved outside settlements complying with one of the stated categories within the policy. The proposed dwelling would be next to one existing dwelling, but the other dwellings and buildings are sporadic and some distance away from the appeal site. In this context, the proposal would not constitute limited infilling within groups of houses. The submitted evidence indicates that the Authority cannot demonstrate a five-year housing land supply, equating to a supply of 4.8 years. Nevertheless, it has been established the development would not be physically well-related to an existing settlement. Consequently, the proposal does not meet the categories set out in policy S5 of the NPPF.
27. Point 4 of policy S5 finds that development proposals which do not fall within one of the categories should only be approved in exceptional circumstances, where the benefits of the proposal would substantially outweigh the adverse effects, including to the character of the countryside and in relation to promoting sustainable patterns of movement.
28. Policy H07 of the NPPF states that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs of the community, including people wishing to commission or build their own homes, as identified through needs assessments prepared for the area of the local planning authority and other relevant evidence. The authority cannot demonstrate a five-year housing land supply which would signal that there is a general need for more housing which I give substantial weight.
29. However, in providing additional housing, the proposed accommodation would conflict with other policies of the NPPF, including DP3, N4 and TR3 which in summary relate to design, protected landscapes and locating development in sustainable locations. Furthermore, Policy N4 requires that substantial weight is placed on the importance of conserving and enhancing the natural beauty of the National Park. Taken together, I find the benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the national decision-making policies of the NPPF. As such, policy S5 of the NPPF does not point to permission in principle being granted in this instance. In the final balance, material considerations in the proposal's favour are not of sufficient weight to suggest the decision should be made other than in accordance with the development plan. Therefore, for the reasons given, and having regard to all other matters raised, the appeal should be dismissed.

Alice James

INSPECTOR